

24LBCV02847 24LBCV02847

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-11

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Case Number: 24LBCV02847 Hearing Date: August 11, 2026 Dept: S27

1. Background

Facts

On December 20, 2024, Plaintiff

Jose Villa ("Plaintiff") filed a complaint against Defendants, Port of Los Angeles, City of Los Angeles (the "City"), County of Los Angeles, SSA Marine, a Carrix Enterprise, SSA Marine, Inc., SSA Pacific of America ("SSA"), Carrix, Inc., Stevedoring Services of America, Inc., Berth 55 Warehouse, and AltaSea at the Port of Los Angeles, and Does 1 to 100, inclusive, alleging two causes of action: (1) Premises Liability, and (2) Negligence. Plaintiff alleges he tripped on the side of a step, which was in a dangerous condition, and it caused him to fall into a glass door and/or window.

On March 27, 2025, SSA and the City

filed a cross-complaint against Cross-Defendants U.S. Expeditors, Jose Villa, Villa Transportation, Inc., Inner Valley Transport, inc., and IVT Logistics Worldwide, Inc. ("Cross-Defendant"), alleging four causes of action: (1) Breach of Contract; (2) Equitable Indemnity; (3) Declaratory Relief; and (4) Apportionment of Fault.

On January 29, 2026, the City filed

its dismissal with prejudice as to the three equitable causes of action, Equitable Indemnity, Declaratory Relief, and Apportionment of Fault.

On February 10, 2026, the City

filed its dismissal as to the Breach of Contract cause of action, without prejudice.

Cross-Defendant filed a memorandum of costs on February 25, 2026.

2. Motion to Tax Costs

On March 16, 2026, the City filed the instant motion to strike or tax costs. The City seeks to strike or tax \$1,381.70 for the deposition of SSA's PMK Kevin Nielsen on the grounds it was not reasonably necessary to litigate. (Mot., p. 3.) The City further seeks to strike or tax \$202.44 in "runner fees," arguing they are not expenses recoverable under Code of Civil Procedure section 1033.5. (Mot., p. 3.) Finally, the City argues that, as a threshold matter, Cross-Defendant may not be entitled to recover any costs at all, as costs may only be awarded to a "prevailing party" under Code of Civil Procedure section 1032. (Mot., p. 3.)

A. Legal Standard

Code of Civil Procedure section 1032(b) provides that a prevailing party is entitled as a matter of right to recover costs. Section 1033.5 itemizes costs that are recoverable. Code of Civil Procedure section 1033.5(c) states, in relevant part: "Any award for costs shall be subject to the following: (1) Costs are allowable if incurred, whether or not paid. (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (3) Allowable costs shall be reasonable in amount. (4) Items not mentioned in this section . . . may be allowed . . . in the Court's discretion." (Code Civ. Proc., § 1033.5, subd. (c).)

"If the items in a cost memorandum appear proper, the verified memorandum is prima facie evidence the expenses were necessarily incurred by the prevailing party. To controvert this evidence, the burden is on the objecting party to present evidence showing the contrary." (Whatley-Miller v. Cooper (2013) 212 Cal.App.4th 1103, 1115.) "[A] party's 'mere statements in the points and authorities accompanying its notice of motion to strike cost bill and the declaration of its counsel are insufficient to rebut the prima facie showing

[that the costs were necessarily incurred].” (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.)

B.

Prevailing Party

The City argues Cross-Defendant may not be entitled to recover any costs at all, because the City voluntarily dismissed its cross-complaint before any adjudication.

(Mot., p. 3.) Therefore, the City argues, it is within the Court’s discretion whether Cross-Defendant is the prevailing party. (Mot., p. 3.)

In opposition, Cross-Defendant argues a party in whose favor a dismissal is entered is considered a prevailing party. (Opp., p. 3.)

Code of Civil Procedure section 1032 defines prevailing party as “a defendant in whose favor a dismissal is entered...” (Code Civ. Proc., § 1032, subd. (a)(4).) The City’s request for dismissal of the three equitable causes of action of the City’s cross-complaint was entered on January 29, 2026. (See Request for Dismissal 1/29/26.) The City’s request for dismissal of the Breach of Contract cause of action of the City’s cross-complaint was entered on February 10, 2026. (See Request for Dismissal 2/10/26.)

Therefore, dismissal was entered in favor of Cross-Defendant. The Court finds Cross-Defendant is the prevailing party under section 1032 and is therefore entitled as a matter of right to recovery of costs.

C.

Deposition Costs

Cross-Defendant seeks to recover \$1,381.70 for the deposition of SSA’s PMK, Kevin Nielsen. (Memo. of Costs Worksheet, p. 1, ¶ 4.)

The City argues the deposition of Kevin Nielsen took place on January 29, 2026, and focused entirely on issues pertaining to SSA’s claims. (Mot., p. 4.) The City argues Cross-Defendant’s participation in the deposition was independent of the

City's cross-complaint because the deposition was noticed by Plaintiff and concerned Plaintiff's claims. (Mot., p. 5.)

In opposition, Cross-Defendant argues that the City has not met their burden to challenge the propriety of costs. (Opp., p. 4.) Cross-Defendant argues both the City and SSA were seeking defense and indemnity from Cross-Defendant, therefore the costs of deposition of SSA's PMK is necessary. (Opp., p. 5.) Cross-Defendant further argues the deposition concerned issues relating to the City's ownership of the property, SSA's tenancy, and the rights and obligations of the City and SSA pursuant to the City's tenancy permit issued to SSA. (Opp., p. 5.)

Deposition

costs are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(3). Here, the City provides no substantive evidence to challenge Cross-Defendant's prima facie showing of reasonableness. The City only argues that the deposition costs are unreasonable because the deposition was independent of the City's cross-complaint.

Nonetheless, Cross-Defendant provides relevant portions of the transcript of the deposition of Kevin Nielsen that show the deposition concerned issues relating to the City's ownership of the property and the rights and obligations of the City pursuant to the City's tenancy permit issued to SSA. (See Arshansky Decl., ¶ 9; Ex. C.) The City has not overcome Cross-Defendant's showing of reasonableness. The Court does not tax the deposition costs.

D.

Runner Fees

Cross-Defendant

seeks to recover "runner fees" in the total amount of \$202.44.

The City seeks to

strike or tax \$202.44 in "runner fees" associated with filing documents in the action, arguing they are not expenses recoverable under Code of Civil Procedure section 1033.5. (Mot., p. 5.)

In opposition,

Cross-Defendant argues messenger fees may be allowed in the Court's discretion.

(Opp., p. 5.) Cross-Defendant argues the runner fees were incurred for filing the demurrer, summary judgment motion, and an ex-parte application and were thus reasonably necessary to the litigation. (Opp., p. 5.)

Messenger costs are not expressly permitted or prohibited by statute and are therefore discretionary. Here, Cross-Defendant submits invoices of the runner fee for each filing. (See Arshansky Decl., ¶ 10; Ex. D.) However, the Court finds the “runner fees” are unnecessary on their face given cheaper alternatives available to Cross-Defendant. Therefore, the Court taxes the runner fees in their entirety.

3. Conclusion

Defendant City of Los Angeles's Motion to Strike or Tax Costs is GRANTED IN PART. Runner fees are taxed in the amount of \$202.44.

Moving Defendant is ordered to give notice.